

SOLVED PRACTICE WORKBOOK

Public Services - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

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Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Public Services - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Strict Continuous A -> B -> C -> D Rotation

OM1. Part XIV of the Constitution is correctly divided as:

A. Articles 308-314 on services and Articles 315-323 on Public Service Commissions. B. Articles 309-316 on services and Articles 317-323 on finance. C. Articles 308-312 on tribunals and Articles 313-323 on elections. D. Articles 308-323 exclusively on All-India Services.

Answer: A.

[FACT] Articles 308-314 concern services; Articles 315-323 concern Public Service Commissions. [LIMIT] Article 323A is in Part XIV-A, not this Part XIV block.

OM2. Article 308 is best read today as:

A. a continuing exclusion of the present Union Territory from Part XIV. B. a surviving interpretation text whose reference to the former State must be read with post-2019 territorial change. C. a rule applicable only to All-India Services. D. deleted after the Jammu and Kashmir Reorganisation Act.

Answer: B.

[FACT] The printed text remains. [ANALYSIS] It cannot be used to recreate a present special-status exclusion for a State that no longer exists in that form.

OM3. Which is an All-India Service?

A. Central Secretariat Service. B. Indian Revenue Service. C. Indian Forest Service. D. Indian Foreign Service.

Answer: C.

[FACT] The existing AIS are IAS, IPS and Indian Forest Service.

OM4. Which statement about "civil post" is most accurate?

A. It applies only to gazetted posts. B. It is identical to Group A service membership. C. It excludes every temporary appointment. D. It can include a post outside an organised civil service if the legal relationship is with the Union or State.

Answer: D.

[FACT] Article 311 protects service members and holders of civil posts. The status test is wider than cadre membership.

OM5. Under Article 309, the primary power to regulate recruitment and service conditions belongs to:

A. the appropriate legislature, subject to the Constitution. B. the UPSC alone. C. the President and Governors exclusively. D. the Supreme Court through service jurisprudence.

Answer: A.

[FACT] The proviso rule-making power operates until legislative provision and remains subordinate to the Constitution and law.

OM6. Rules made under the proviso to Article 309 are:

A. constitutional amendments. B. subordinate legislation with legal force. C. non-binding advice of the Public Service Commission. D. private contractual terms.

Answer: B.

[FACT] They are statutory in character but subordinate to the Constitution and competent legislation.

OM7. Executive instructions in a service matter may:

A. repeal an Act governing the service. B. override Article 16 for administrative convenience. C. fill a genuine gap not occupied by law or rule, without contradiction. D. amend a conflicting statutory rule.

Answer: C.

[FACT] Instructions supplement; they do not supersede higher law.

OM8. Which pairing is correct?

A. CCA rules - constitutional amendment procedure. B. Conduct rules - creation of a new AIS. C. Recruitment rules - punishment for misconduct. D. Recruitment rules - eligibility and mode of filling a post.

Answer: D.

[FACT] Recruitment, conduct and disciplinary rules answer different legal questions.

OM9. The Indian doctrine of pleasure under Article 310 is:

A. subject to express constitutional provisions and reviewable legal limits. B. displaced entirely by Article 311. C. applicable only to temporary employees. D. an unreviewable personal power of the President.

Answer: A.

[FACT] Pleasure survives, but Article 311, Fundamental Rights, special office protections and judicial review fetter its use.

OM10. In ordinary constitutional operation, *Shamsher Singh* supports the proposition that:

A. Governors personally decide all disciplinary cases. B. formal executive satisfaction ordinarily operates through the constitutional Council of Ministers. C. civil servants are independent of the elected executive. D. Article 310 was impliedly repealed.

Answer: B.

[FACT] President and Governor are formal constitutional heads except where the Constitution provides otherwise.

OM11. Article 310(2) may support contractual compensation where:

A. misconduct leads to dismissal before retirement. B. any civil servant dislikes a transfer. C. a specially qualified outsider's agreed post ends early by abolition or a non-misconduct vacation requirement. D. an AIS officer is denied Central deputation.

Answer: C.

[FACT] The clause is narrow and conditional.

OM12. Article 311 applies directly to:

A. every private contractor serving government. B. every uniformed member of the armed forces. C. only permanent gazetted officers. D. listed civil-service members and holders of civil posts under the Union or a State.

Answer: D.

[FACT] Status as a protected civil servant or civil-post holder is the first gateway.

OM13. Article 311(1) principally prevents:

A. dismissal or removal by an authority subordinate to the appointing authority. B. prosecution without UPSC approval. C. transfer without employee consent. D. suspension during investigation.

Answer: A.

[FACT] The same individual need not act; the deciding authority must not be subordinate and must be competent under rules.

OM14. After the 42nd Amendment, Article 311(2):

A. protects only AIS officers. B. no longer constitutionally requires a separate representation against the proposed penalty after inquiry. C. bars supply of the inquiry report. D. no longer requires any inquiry.

Answer: B.

[FACT] The inquiry-stage reasonable opportunity remains.

OM15. Which is expressly part of Article 311's regular inquiry protection?

A. a jury trial. B. a mandatory second notice on penalty. C. information about charges and reasonable opportunity to be heard on them. D. a guaranteed promotion hearing.

Answer: C.

[FACT] Charge notice and defence opportunity are textual; the separate penalty opportunity was removed.

OM16. Which is **not** one of the three Article 311(2) proviso exceptions?

A. conduct leading to criminal conviction. B. inquiry not reasonably practicable for recorded reasons. C. security-of-State satisfaction of President/Governor. D. general administrative convenience.

Answer: D.

[FACT] Convenience cannot be substituted for a constitutional exception.

OM17. Under Article 311(2)(b), the empowered authority must:

A. record in writing why inquiry is not reasonably practicable. B. obtain a Rajya Sabha resolution. C. secure the employee's consent. D. prove a criminal conviction.

Answer: A.

[FACT] Written reasons are an express constitutional control.

OM18. Article 311(3), which gives finality on practicability, is best understood after *Tulsiram Patel* as:

A. requiring Supreme Court pre-clearance. B. not excluding judicial review for lawful, relevant and bona fide exercise. C. excluding every court. D. converting the order into legislation.

Answer: B.

[FACT] Constitutional finality does not license mala fides or irrelevant satisfaction.

OM19. The Article 311(2)(c) exception is tied specifically to:

A. budget economy. B. public criticism. C. the interest of the security of the State. D. routine law-and-order deployment.

Answer: C.

[FACT] The phrase must not be diluted into broad "public interest".

OM20. Which statement is correct?

A. Clause (2)(c) may be invoked by any immediate supervisor. B. Conviction automatically requires dismissal in every case. C. Clause (2)(b) reasons need never exist on record. D. Dispensing with inquiry does not erase competence, relevance, penalty rules or judicial review.

Answer: D.

[ANALYSIS] The exceptions remove the regular inquiry, not the entire rule of law.

OM21. Under the ordinary penalty distinction, dismissal:

A. is generally graver than removal and ordinarily carries a disqualifying future-employment consequence, subject to rules. B. may be imposed by any subordinate officer. C. is identical to suspension. D. never ends service.

Answer: A.

[FACT] Exact collateral consequences remain rule-specific.

OM22. Suspension pending inquiry is ordinarily:

A. immune from review and subsistence rules. B. an interim measure rather than a listed penalty. C. equivalent to dismissal. D. a constitutional amendment.

Answer: B.

[FACT] Rule 10 suspension and Rule 11 penalties are distinct under the CCS (CCA) structure.

OM23. Which distinction is correct?

A. Every compulsory retirement is punitive. B. Compulsory retirement is prohibited by Article 310. C. FR 56(j)-type public-interest retirement is ordinarily non-punitive, while disciplinary compulsory retirement is a penalty. D. Every compulsory retirement requires criminal conviction.

Answer: C.

[FACT] The legal source and purpose control the classification.

OM24. The *Dhingra* line of cases requires courts to:

A. treat every temporary-service exit as punishment. B. ignore surrounding circumstances. C. rely only on the order's title. D. examine substance, source of power, stigma and punitive consequences.

Answer: D.

[FACT] An innocuous label cannot conceal punishment, but temporary status does not itself prove punishment.

OM25. The sealed-cover principle in *K.V. Jankiraman* rejects use based merely on:

A. an uncrystallised preliminary inquiry or suspicion without the formal trigger. B. a criminal charge-sheet filed in court. C. an issued disciplinary charge memorandum. D. current DoPT instructions applying the procedure.

Answer: A.

[FACT] Formal commencement, not vague pendency, is central.

OM26. *ECIL v B. Karunakar* is associated with:

A. the Rajya Sabha majority for Article 312. B. supply of an adverse inquiry report and a prejudice-based remedial approach. C. the right to strike. D. creation of AIJS.

Answer: B.

[FACT] The judgment refines post-inquiry fairness after the 42nd Amendment.

OM27. *B.C. Chaturvedi* primarily cautions that judicial review:

A. always substitutes the court's penalty. B. is unavailable in disciplinary cases. C. is not an appellate rehearing, though shocking disproportionality and process illegality remain reviewable. D. belongs only to CAT.

Answer: C.

[FACT] Review focuses on legality and the decision process, with bounded penalty intervention.

OM28. A new All-India Service may be created after:

A. a simple Lok Sabha resolution. B. a presidential ordinance alone. C. unanimous approval of every State legislature. D. a Rajya Sabha national-interest resolution supported by not less than two-thirds present and voting, followed by parliamentary law.

Answer: D.

[FACT] The States' House supplies the constitutional gateway.

OM29. Article 312(2) deems which services to have been created under Article 312(1)?

A. IAS and IPS. B. IAS and Indian Foreign Service. C. IPS and Indian Forest Service. D. all Group A services.

Answer: A.

[FACT] Indian Forest Service is an AIS constituted through the 1951 Act framework.

OM30. Section 3 of the All-India Services Act, 1951 principally supports:

A. conversion of IFS into AIS. B. Central rule-making on recruitment and service conditions after State consultation, subject to the Act. C. State legislatures unilaterally abolishing an AIS. D. Supreme Court recruitment of IAS officers.

Answer: B.

[FACT] The Act operationalises Article 312 through rules and parliamentary control.

OM31. AIS dual control is most accurately described as:

A. complete ownership by the Union in every daily matter. B. control by UPSC after appointment. C. Union-framed common architecture with substantial State deployment and day-to-day control under the rules. D. complete ownership by States.

Answer: C.

[ANALYSIS] "Shared personnel governance" is more accurate than a one-line ultimate/immediate-control formula.

OM32. Which statement about AIJS is correct?

A. It is already recruiting through UPSC. B. It requires Article 368 amendment before Parliament can legislate. C. It can include any subordinate judicial post. D. It is constitutionally enabled, cannot include posts below district judge, and has not been officially established.

Answer: D.

[FACT] Article 312(4) expressly prevents the necessary creating law from being treated as an Article 368 amendment.

OM33. Article 313:

A. continues pre-Constitution service laws so far as consistent until other provision is made. B. creates the Indian Forest Service. C. establishes CAT. D. governs Public Service Commission removal.

Answer: A.

[FACT] It is a transitional continuity provision.

OM34. Article 314:

A. remains the principal protection for all AIS officers. B. was repealed by the 28th Amendment. C. contains the AIJS proviso. D. created the doctrine of pleasure.

Answer: B.

[FACT] Article 312A was inserted and Article 314 repealed as part of colonial-service closure.

OM35. Civil servants' Article 19 rights:

A. include an unlimited right to disclose official information. B. override every conduct rule. C. continue subject to constitutionally valid service restrictions, including political-neutrality obligations. D. disappear on appointment.

Answer: C.

[FACT] Public service creates special lawful restrictions without extinguishing citizenship.

OM36. According to *T.K. Rangarajan*, government employees:

A. have an absolute fundamental right to strike. B. may strike whenever an association votes. C. cannot use any grievance procedure. D. have no fundamental right to strike.

Answer: D.

[FACT] Association and grievance mechanisms must be distinguished from a fundamental right to strike.

Remedial MCQs 37-48 - Same Continuous Rotation

RM37. A department finds no statutory rule on a minor procedural detail. It may most defensibly:

A. issue a gap-filling instruction consistent with the Constitution, statute and existing rules. B. contradict the recruitment rules by circular. C. ignore Article 16. D. amend Article 309 through an Office Memorandum.

Answer: A.

[ANALYSIS] This repairs the common error that every executive instruction is either void or equal to a rule.

RM38. A probationer's innocuous discharge order follows only a general suitability review under the rules. Article 311:

A. bars all probation review. B. may not apply as punishment unless misconduct is the foundation or the action is stigmatic. C. always converts it into dismissal. D. requires a Rajya Sabha resolution.

Answer: B.

[FACT] Status alone does not decide; substance and foundation do.

RM39. An authority invokes Article 311(2)(b) because an inquiry would be “time-consuming”, recording no other reason. The best conclusion is:

A. valid because efficiency is enough. B. automatically converted into clause (c). C. vulnerable because inconvenience without recorded circumstances does not establish impracticability. D. immune under Article 311(3).

Answer: C.

[FACT] Clause (d) is exceptional and reviewable.

RM40. A government says Article 311 prevents investigation of corruption. This is:

A. correct if the officer is permanent. B. correct until UPSC consents. C. correct for AIS officers. D. incorrect; Article 311 regulates specified service penalties and does not bar lawful vigilance or criminal investigation.

Answer: D.

[FACT] Accountability tracks remain available.

RM41. Which statement best distinguishes removal from dismissal?

A. Both end service, but dismissal ordinarily has the graver disqualification consequence under the rules. B. Neither attracts Article 311. C. Dismissal leaves service intact. D. Removal is merely suspension.

Answer: A.

[FACT] Rule-specific verification remains necessary.

RM42. Which action is most clearly a disciplinary major penalty rather than a non-punitive review measure?

A. expiry of a fixed-term contract. B. compulsory retirement imposed after proved misconduct under the penalty rules. C. sealed-cover consideration. D. routine transfer.

Answer: B.

[FACT] The label “compulsory retirement” must be linked to its source.

RM43. The federal safeguard in Article 312 lies principally in:

A. High Court approval. B. UPSC veto. C. the special Rajya Sabha national-interest resolution before parliamentary creation. D. gubernatorial consent from every State.

Answer: C.

[ANALYSIS] The States' House mediates a service common to Union and States.

RM44. Which claim about AIJS is unsafe?

A. posts below district judge cannot be included. B. debate involves federalism, language and High Court control. C. Article 312 enables it. D. it is an existing fourth AIS.

Answer: D.

[FACT] No official establishment was verified.

RM45. Political neutrality requires a civil servant to:

A. give candid advice, record concerns and then implement lawful policy impartially. B. avoid all constitutional values. C. oppose every policy change. D. serve only the government that appointed the officer.

Answer: A.

[ANALYSIS] Neutrality is non-partisanship plus constitutional fidelity.

RM46. Mission Karmayogi is best described as:

A. abolition of Article 311. B. a competency-driven civil-services capacity-building architecture wider than the iGOT platform. C. a judicial order on transfers. D. a new All-India Service.

Answer: B.

[FACT] The official programme includes six pillars and multiple institutions.

RM47. Which lateral-entry statement is most accurate?

A. It automatically abolishes reservation. B. It converts every specialist into an AIS officer. C. Its legality depends on the post, recruitment mode, rules, consultation/exemption and equality requirements. D. It always bypasses UPSC.

Answer: C.

[FACT] The policy label cannot replace a post-specific legal analysis.

RM48. After *L. Chandra Kumar*, CAT decisions:

A. go directly to Parliament. B. are immune from all constitutional courts. C. can never address constitutional issues. D. remain reviewable by the territorial High Court's Division Bench under Articles 226/227.

Answer: D.

[FACT] Tribunals supplement rather than supplant constitutional courts.

PYQS AND ANSWER PRACTICE

Verified PYQ Routing Audit

[FACT] The local routing and integration-audit ledgers for 2018-2023, 2024-2025 and 2026 were searched for Article 309, Article 310, Article 311, Article 312, All-India Services, doctrine of pleasure, civil services neutrality, civil service reforms and lateral entry.

[LIMIT] **No direct standalone recent Prelims or GS-II Polity PYQ focused on Articles 309-312 or the constitutional AIS architecture was verified in those ledgers.** This package therefore does not manufacture an official year, wording, option set or key.

[FACT] One directly relevant **Governance/GS-II** PYQ was verified with official-paper wording, and several GS-IV/Governance demands were verified as adjacent routes. They are cross-linked below without being relabelled as direct Polity PYQs.

Visual 56 - PYQ Ownership Audit

Year/paper	Audited demand	Proper route in this package
2020 GS-II	institutional quality and civil-service reform for democracy	solved adjacent Governance PYQ
2018 GS-IV	universal civil-service values	Ethics cross-link only
2019 GS-IV	politicisation through transfers/postings	Ethics case-study cross-link only
2019 GS-IV	institutional civil-service ethics reform	Ethics cross-link only
2021 GS-IV	impartiality and non-partisanship	Ethics cross-link only
2024 GS-IV	Mission Karmayogi	Ethics/capacity cross-link only
2025 GS-I ledger route	professionalism and nationalist consciousness in civil-service ethos	Governance cross-link; neutral audit description only

Caption: Relevance does not transfer ownership; Ethics questions remain Ethics questions.

Verified Adjacent PYQ - UPSC CSE Mains 2020, GS-II

“Institutional quality is a crucial driver of economic performance.” In this context suggest reforms in Civil Service for strengthening democracy.

Demand decode: [FACT] The directive is **suggest**. The answer must connect institutional quality to democratic performance and propose reforms; merely listing defects or narrating Mission Karmayogi is insufficient.

Model solution

Thesis: [ANALYSIS] Civil-service quality strengthens democracy when the permanent executive is simultaneously neutral, competent, accountable and citizen-facing. Reform must therefore protect lawful independence while improving capability and answerability.

1. **Tenure and candid advice:** [FACT] *T.S.R. Subramanian* directed Civil Services Boards, assured tenure and written recording of oral instructions. [ANALYSIS] Stable, reasoned postings reduce partisan pressure. [LIMIT] tenure must be paired with transparent appraisal so it does not shelter non-performance.
2. **Rule-based accountability:** [FACT] Articles 310-311 combine executive discipline with inquiry safeguards. [ANALYSIS] timely investigations, trained inquiry officers and speaking penalty orders improve credibility. [LIMIT] speed cannot erase charge specificity or defence opportunity.
3. **Merit and domain competence:** [FACT] Article 309 recruitment rules and Article 320 consultation structure the entry system. [ANALYSIS] domain tenure, specialist cadres and bounded lateral induction can improve complex policy design. [LIMIT] selection must be transparent, equal and conflict-controlled.
4. **Capacity:** [FACT] Mission Karmayogi shifts training toward roles and competencies through the CBC-iGOT architecture. [ANALYSIS] training should be linked to workplace outcomes rather than course totals. [LIMIT] capacity reform alone does not cure politicised transfers.
5. **Ethics and citizen accountability:** [FACT] conduct rules, vigilance, grievance systems, audit and judicial review constrain discretion. [ANALYSIS] published service standards and reasoned decisions convert bureaucratic power into public trust. [LIMIT] excessive compliance layers can themselves create delay.

Verdict: [ANALYSIS] The reform objective is **neutral competence under democratic control**: stable tenure, fair discipline, role-matched expertise, measurable citizen outcomes and transparent reasons.

Why this earns marks: It answers the reform directive, links every proposal to named constitutional or institutional evidence, and qualifies each gain against its characteristic abuse.

Adjacent Verified PYQ Cross-Links - Not Direct Polity PYQs

- [FACT] **2018 GS-IV:** the ledger routes a demand on three universal civil-service values to the Ethics foundational-values owner. Use this package only for the institutional support-conduct rules, tenure and accountability.
- [FACT] **2019 GS-IV:** the ledger routes the politicisation-through-transfers scenario to Ethics case-study and accountability owners. Use *T.S.R. Subramanian* as institutional evidence, but do not relabel the case as an Article 311 PYQ.
- [FACT] **2019 GS-IV:** the ledger routes civil-service ethics reform to Ethics codes and case-study owners. Use CVC/CVO, written orders and fair discipline as supporting institutions.
- [FACT] **2021 GS-IV:** impartiality and non-partisanship remain an Ethics demand. This package supplies the political-executive/permanent-executive compact.
- [FACT] **2024 GS-IV:** Mission Karmayogi remains an Ethics/capacity application. It is not evidence that UPSC asked the constitutional text of Article 309.
- [FACT] **2025 ledger route:** the neutral audited theme concerns professionalism and nationalist consciousness in civil-service ethos and remains Governance-owned. [LIMIT] Because the exact official paper text was not independently reopened during this export, no quotation marks or claimed verbatim wording are used here.

Original Solved Mains Practice - Exactly Eight

M1. Pleasure and protection (10 marks, 150 words)

Question: "A civil servant holds office at the pleasure of the executive, but not at its mercy." Explain with reference to Articles 310 and 311.

Model solution

Thesis: [FACT] Article 310 preserves executive control over tenure; Article 311 converts that control into a rule-bound power for protected civil servants.

1. **Power:** [FACT] Union and AIS tenure is formally at the President's pleasure and State civil tenure at the Governor's pleasure. [ANALYSIS] This enables removal of the unfit and preserves executive responsibility. [LIMIT] *Shamsher Singh* prevents reading pleasure as personal whim.
2. **First shield:** [FACT] Article 311(1) bars dismissal or removal by an authority subordinate to the appointing authority. [ANALYSIS] Institutional rank protects against petty retaliation. [LIMIT] the same individual need not decide.

3. **Second shield:** [FACT] Article 311(2) ordinarily requires charges, inquiry and reasonable opportunity. [ANALYSIS] neutral administration needs confidence that adverse action will be evidence-based. [LIMIT] conviction, recorded impracticability and State security are express exceptions.
4. **Review:** [FACT] *Tulsiram Patel* and Article 14 keep exception use reviewable. [ANALYSIS] constitutional pleasure is therefore power under law.

Verdict: India retained discipline but rejected arbitrary royal prerogative; security of tenure protects lawful candour without creating immunity from misconduct.

Why this earns marks: It directly reconciles the two Articles, uses two cases and qualifies the protection through exact exceptions.

M2. Article 309 hierarchy (10 marks, 150 words)

Question: Distinguish an Act, an Article 309 rule and an executive instruction in the regulation of public services.

Model solution

Thesis: [FACT] Article 309 creates a hierarchy in which legislation is primary, statutory rules administer the field, and executive instructions may only supplement lawful gaps.

Instrument	Authority and role	Limit
Act	appropriate legislature regulates recruitment/service conditions	subject to Constitution
Article 309 rule	President/Governor or delegated rule-maker regulates until/under legislation	subordinate to Constitution and Act
Executive instruction	administration fills an unoccupied procedural space	cannot amend or contradict rule

Analysis: [ANALYSIS] The hierarchy combines continuity with democratic legality. Recruitment rules decide eligibility and mode; conduct rules define obligations; CCA rules govern discipline and appeal.

Qualification: [LIMIT] A long administrative practice does not acquire statutory force by repetition, while an Article 309 rule is not “mere guidance” simply because the executive framed it.

Verdict: In a service-law dispute, the answer should move downward from Constitution to Act to rule to instruction; validity fails where a lower instrument contradicts a higher one.

Why this earns marks: It distinguishes source, function and legal effect rather than merely listing instruments.

M3. Punitive or simpliciter? (10 marks, 150 words)

Question: How do courts distinguish termination simpliciter from punitive termination of a probationer or temporary civil servant?

Model solution

Thesis: Temporary status permits rule-based exit, but it does not allow the State to disguise punishment and evade Article 311.

1. [FACT] *Parshotam Lal Dhingra* requires attention to the source of power, substantive consequences and whether the action is punishment.
2. [FACT] *Sukh Raj Bahadur* distinguishes misconduct as the **foundation** of the order from background material that is merely a **motive** for an innocuous suitability decision.
3. [ANALYSIS] Courts examine the order's language, surrounding inquiry, findings and stigma. A completed accusatory inquiry followed by discharge may be punitive even if the final order is brief.
4. [LIMIT] General unsuitability, expiry of term or bona fide reversion under the rules is not automatically punishment; Articles 14 and 16 still control mala fides and discrimination.

Verdict: Form cannot defeat substance, but suspicion cannot automatically convert every probation decision into a disciplinary penalty.

Why this earns marks: It identifies the precise test, gives two named cases and balances both sides.

M4. AIS and federalism (15 marks, 250 words)

Question: "The All-India Services are a federal bridge whose success depends on shared control." Examine.

Model solution

Thesis: [FACT] Article 312 creates services common to Union and States only after a special Rajya Sabha national-interest resolution. The design is integrative, but its legitimacy depends on genuine personnel federalism.

Unity gains

- [CLAIM] Common standards improve administrative capacity. [EVIDENCE] IAS, IPS and Indian Forest Service operate under the AIS Act and common recruitment/service rules. [ANALYSIS] comparable professional norms aid national programmes and crisis coordination. [LIMIT] uniform training cannot replace State-specific language and local knowledge.
- [CLAIM] Mobility creates institutional linkage. [EVIDENCE] cadre and deputation rules permit careers across State and Union assignments. [ANALYSIS] officers carry field experience into national policy and national law into State implementation. [LIMIT] opaque deputation can appear coercive.
- [CLAIM] Continuity supports constitutional government. [EVIDENCE] service tenure and conduct rules span electoral transitions. [ANALYSIS] this can protect candid advice and lawful implementation. [LIMIT] permanence can become inertia without appraisal.

Autonomy risks

- State governments may face divided accountability over posting, deputation and discipline.
- Central empanelment or recall incentives may distort officer responsiveness.
- Arbitrary State transfers may equally destroy neutrality.

Reform

[ANALYSIS] Use transparent deputation criteria, predictable consultation, Civil Services Boards, recorded transfer reasons, domain and local-language competence, and joint performance frameworks. Strengthen State services rather than treating AIS as a substitute.

Verdict: The AIS are neither inherently centralising nor automatically federal. They integrate India when shared rules restrain both Union commandeering and State patronage.

Why this earns marks: It begins with Article 312, evaluates benefits and risks symmetrically, and proposes federal guardrails.

M5. Article 311 exceptions (15 marks, 250 words)

Question: Critically examine the three exceptions to the inquiry requirement under Article 311(2).

Model solution

Thesis: [FACT] The proviso protects administration where ordinary inquiry is legally unnecessary or practically/security-wise untenable, but exceptional power remains bounded by relevance, competence and review.

Conviction

[FACT] Inquiry may be dispensed with where conduct led to conviction on a criminal charge. [ANALYSIS] a competent criminal trial has already adjudicated guilt beyond reasonable doubt. [LIMIT] conviction does not mechanically fix the service penalty; the authority must apply the governing penalty framework to the conduct and circumstances.

Not reasonably practicable

[FACT] The empowered authority must record written reasons. [ANALYSIS] threats to witnesses, violent conditions or a genuinely impossible hearing may justify the route. [LIMIT] speed, embarrassment or weak evidence is not impracticability. *Tulsiram Patel* preserves judicial review despite Article 311(3) finality.

Security of the State

[FACT] The President or Governor must be satisfied that an inquiry is not expedient in the interest of State security. [ANALYSIS] disclosure of sensitive sources or methods may itself cause harm. [LIMIT] the text is not ordinary public order; *Shamsher Singh* also prevents treating formal satisfaction as personal whim.

Evaluation

[ANALYSIS] The proviso prevents procedure from defeating administration, but its legitimacy depends on narrow construction, recorded institutional responsibility where text requires, a speaking penalty order and effective review for mala fides, irrelevance and disproportionality.

Verdict: The exceptions are constitutional safety valves, not administrative shortcuts.

Why this earns marks: It treats each exception separately, identifies different satisfaction standards and adds case-led review.

M6. Rights and neutrality (15 marks, 250 words)

Question: Civil servants remain citizens, yet public service justifies special restrictions. Analyse with reference to equality, expression, association and political neutrality.

Model solution

Thesis: Public employment does not extinguish Fundamental Rights; it creates a public-law office whose impartial performance permits carefully tailored restrictions.

Rights

- [FACT] Articles 14 and 16 prohibit arbitrary classification and protect equal opportunity in recruitment and service progression. [ANALYSIS] transparent rules and reasoned discipline build legitimacy. [LIMIT] equality permits constitutionally authorised reservation and rational service classifications.
- [FACT] Article 19 freedoms continue for citizen-employees. [ANALYSIS] expression and association preserve dignity and professional voice. [LIMIT] confidentiality, discipline and the public's trust justify valid conduct restrictions.

Neutrality obligations

- [FACT] CCS/AIS conduct rules restrict party activity, election participation, prejudicial associations, demonstrations and strikes. [ANALYSIS] the same administration must serve changing elected governments.
- [FACT] *T.K. Rangarajan* denies a fundamental right to strike for government employees. [LIMIT] this does not erase lawful associations, representations, tribunals or grievance processes.

Institutional balance

[FACT] *T.S.R. Subramanian* supports written instructions and stable tenure. [ANALYSIS] rights are meaningful when officers can record illegal pressure, while democratic accountability remains because elected ministers decide lawful policy.

Verdict: The correct standard is proportional service discipline: politically non-partisan, constitutionally committed and fully reviewable-not a rights-free bureaucracy.

Why this earns marks: It integrates four rights/values, conduct rules and two judgments with clear qualifications.

M7. Comprehensive civil-service reform (20 marks, 300 words)

Question: "India's civil-service problem is not a choice between independence and accountability, but a failure to institutionalise both." Discuss and suggest reforms.

Model solution

Thesis: [ANALYSIS] Independence without accountability can become inertia; accountability without independence can become patronage. Constitutional administration requires neutral competence: protected candid advice, lawful political direction, measurable capability and fair discipline.

Structural diagnosis

1. [CLAIM] Exit protection is stronger than career protection. [EVIDENCE] Article 311 guards dismissal, while *T.S.R. Subramanian* addressed transfers, tenure and oral orders. [ANALYSIS] an officer can be pressured without formal punishment. [LIMIT] fixed tenure must not shelter poor performance.
2. [CLAIM] Discipline is often delayed. [EVIDENCE] Article 311, CCS (CCA) processes, *ECIL* and *B.C. Chaturvedi* provide fair procedure and review. [ANALYSIS] weak investigation and vague charges harm both integrity and innocent officials. [LIMIT] speed cannot replace evidence.

3. [CLAIM] competence is mismatched to role. [EVIDENCE] Mission Karmayogi's role/competency framework and CBC-led plans. [ANALYSIS] modern regulation needs technical depth and field coordination. [LIMIT] course completion is not outcome.
4. [CLAIM] divided federal personnel control creates friction. [EVIDENCE] Article 312 and AIS cadre/deputation rules. [ANALYSIS] shared careers can integrate policy. [LIMIT] unilateral control by either level undermines the bargain.

Reform package

- statutory/rule-based Civil Services Boards, minimum tenure and recorded deviation;
- professional investigation, time-managed inquiries, trained presenting/inquiry officers and reasoned penalties;
- competency-to-post mapping, domain tenure, specialist cadres and bounded lateral entry with open criteria and conflict safeguards;
- multi-dimensional appraisal covering legality, outcomes, integrity, equity and citizen feedback, with appeal;
- strengthen State and local services, frontline staffing and inter-governmental consultation;
- whistleblower protection through verified operational mechanisms; do not rely on an uncommenced Act;
- digital HR with privacy, bias audit and human review.

Counterpoint: [ANALYSIS] Too many boards can diffuse responsibility; excessive tenure can weaken ministerial control; metric-heavy appraisal can politicise data. [LIMIT] every reform therefore needs transparent criteria, reasons and review.

Verdict: Reform should neither dismantle Article 311 nor romanticise permanence. It should make lawful independence visible, performance evidence-based and accountability procedurally credible.

Why this earns marks: It diagnoses mechanisms, uses eight named anchors, proposes an integrated package and qualifies each major instrument.

M8. Specialist capacity and democratic control (20 marks, 300 words)

Question: Evaluate whether lateral entry and Mission Karmayogi can resolve the generalist-specialist problem in Indian administration.

Model solution

Thesis: [ANALYSIS] The problem is not “generalists versus specialists” but assigning the right mix of coordination, domain knowledge and field judgment to each role while preserving equality, neutrality and accountability.

Lateral-entry contribution

- [CLAIM] It can supply scarce expertise rapidly. [EVIDENCE] Article 309 recruitment frameworks permit post-specific methods; UPSC's role depends on Article 320, rules and valid exemptions. [ANALYSIS] experts can improve regulation, digital policy, finance or climate design. [LIMIT] a policy label does not settle reservation, consultation or tenure.
- [CLAIM] It can challenge closed career incentives. [EVIDENCE] transparent outside competition widens the talent pool. [ANALYSIS] contestability may reward domain competence. [LIMIT] short contracts may weaken institutional memory and neutrality.
- [CLAIM] It can complement, not replace, career services. [ANALYSIS] generalists remain valuable for federal coordination, implementation and political-administrative navigation.

Mission Karmayogi contribution

- [FACT] The official programme shifts from rules-based to roles-based, competency-driven HR and includes competency, digital learning, e-HRMS and evaluation pillars.
- [FACT] CBC supports standards and Annual Capacity Building Plans; Karmayogi Bharat operates iGOT.
- [ANALYSIS] competency mapping can identify where upskilling, specialist recruitment or mixed teams are needed. [LIMIT] platform activity does not prove improved decision quality.

Combined design

[ANALYSIS] Use role analysis -> decide build/buy/borrow expertise -> transparent recruitment -> conflict and cooling-off rules -> induction in constitutional administration -> mixed teams -> domain tenure -> outcome and integrity review -> knowledge transfer before exit.

Risks

Capture by industry, opaque selection, unequal access, data-driven surveillance, fragmented accountability and resentment between career and lateral personnel.

Current qualification: [CURRENT] No live advertisement status or vacancy count is relied on. The legal answer remains post- and mode-specific.

Verdict: Lateral entry supplies selected expertise and Mission Karmayogi builds internal capability; together they can improve role matching, but only a transparent constitutional HR system converts expertise into democratic capacity.

Why this earns marks: It compares two reforms, explains their interaction, uses official architecture and avoids volatile status claims.